

ELIZABETH II



Dumping at Sea Act 1974

1974 CHAPTER 20

An Act to control dumping in the sea.

[27th June 1974]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Restrictions on
dumping in
the sea.

1.—(1) Subject to the provisions of this section, no person, except in pursuance of a licence granted under section 2 below and in accordance with the terms of that licence—

- (a) shall dump substances or articles in United Kingdom waters ; or
- (b) shall dump substances or articles in the sea outside United Kingdom waters from a British ship, aircraft, hovercraft or marine structure ; or
- (c) shall load substances or articles on to a ship, aircraft, hovercraft or marine structure in the United Kingdom or United Kingdom waters for dumping in the sea, whether in United Kingdom waters or not ; or
- (d) shall cause or permit substances or articles to be dumped or loaded as mentioned in paragraphs (a) to (c) above.

(2) Subject to subsections (3) to (5) below, substances and articles are dumped in the sea for the purposes of this Act if they are permanently deposited in the sea from a vehicle, ship, aircraft, hovercraft or marine structure, or from a structure on land constructed or adapted wholly or mainly for the purpose of depositing solids in the sea.

(3) A discharge incidental to or derived from the normal operation of a ship, aircraft, vehicle, hovercraft or marine structure or of its equipment does not constitute dumping for the purposes of this Act unless the ship, aircraft, vehicle, hovercraft or marine structure in question is constructed or adapted wholly or mainly for the purpose of the disposal of waste or spoil and the discharge takes place as part of its operation for that purpose.

(4) A deposit made by, or with the written consent of, a harbour authority or lighthouse authority, for the purpose of providing moorings or securing aids to navigation, does not constitute dumping for the purposes of this Act.

(5) A deposit made by or on behalf of a harbour authority in the execution of works of maintenance in their harbour does not constitute dumping for the purposes of this Act if it is made on the site of the works.

(6) Subject to subsections (7) to (9) below, any person who contravenes subsection (1) above shall be guilty of an offence and liable—

(a) on summary conviction to a fine of not more than £400 or to imprisonment for a term of not more than six months or to both; or

(b) on conviction on indictment, to imprisonment for not more than five years, or a fine, or to both.

(7) It shall be a defence for a person charged with an offence under subsection (6) above to prove—

(a) that the substances or articles in question were dumped for the purpose of securing the safety of a ship, aircraft, hovercraft or marine structure or of saving life; and

(b) that he took steps within a reasonable time to inform the Minister that the dumping had taken place and of the locality and circumstances in which it took place and the nature and quantity of the substances or articles dumped,

unless the court is satisfied that the dumping was not necessary for any of the purposes mentioned above and was not a reasonable step to take in the circumstances.

(8) It shall be a defence for a person charged with an offence under subsection (6) above to prove—

(a) that he acted under instructions given to him by his employer, or

(b) that he acted in reliance on information given to him by others without any reason to suppose that the information was false or misleading,

and in either case that he took all such steps as were reasonably open to him to ensure that no offence would be committed.

(9) It shall be a defence for a person charged with an offence under subsection (6) above in relation to substances or articles dumped outside United Kingdom waters from a British ship, aircraft or hovercraft to prove that they were loaded on to it in a Convention State and that the dumping was authorised by a licence issued by the responsible authority in that State.

Licences.

2.—(1) In determining whether to grant a licence a licensing authority shall have regard to the need to protect the marine environment and the living resources which it supports from any adverse consequences of dumping the substances or articles to which the licence, if granted, will relate; and the authority shall include such conditions in a licence as appear to the authority to be necessary or expedient for the protection of that environment and those resources from any such consequences.

(2) The licensing authority may revoke a licence if it appears to the authority that the holder is in breach of a condition included in it.

(3) The licensing authority may vary or revoke a licence if it appears to the authority that the licence ought to be varied or revoked because of a change of circumstances relating to the marine environment or the living resources which it supports, including a change in scientific knowledge.

(4) The licensing authority may require an applicant for a licence to pay such fee on applying for it as may be determined by the authority with the consent of the Treasury.

(5) The licensing authority may require an applicant to supply such information and permit such examination and sampling of the substances or articles which he desires to dump, or of similar substances or articles, and to supply such information about the method of dumping which he desires to use, as in the opinion of the authority is necessary to enable the authority to decide whether a licence should be granted and the conditions which any licence that is granted ought to contain.

(6) The licensing authority may require an applicant for a licence to pay such amount, in addition to any fee under subsection (4) above, as the licensing authority may, with the consent of the Treasury, determine, towards the expense of any tests which in the opinion of the authority are necessary to enable the authority to decide whether a licence should be granted and the conditions which any licence that is granted ought to contain, and in particular expense incurred in connection with any monitoring to determine the effect that dumping may have or has had on the marine environment and the living resources which it supports.

(7) A licence—

- (a) shall specify the person to whom it is granted ;
- (b) shall state whether it is to remain in force until revoked or is to expire at a time specified in the licence ;
- (c) shall specify the quantity and description of substances or articles to which it relates ; and
- (d) may make different provision as to different descriptions of substances or articles.

(8) The licensing authority may transfer a licence from the holder to any other person on the application of that person or of the holder, but shall have power to include additional conditions in a licence on transferring it.

(9) Any person who for the purpose of procuring the grant or transfer of a licence, or in purporting to carry out any duty imposed on him as a condition of a licence, knowingly or recklessly makes a false statement or knowingly or recklessly produces, furnishes, signs or otherwise makes use of a document containing a false statement shall be guilty of an offence and liable on summary conviction to a fine not exceeding £400.

(10) A person who at the passing of this Act is authorised in writing by a licensing authority to dump substances or articles in the sea may continue to do so, so long as he complies with any conditions subject to which the authorisation is given, until the authorisation expires or is revoked, as if the authorisation were a licence under this Act.

3.—(1) Where a licensing authority proposes—

- (a) to refuse a licence ; or
- (b) to include a condition in a licence, whether on granting or transferring it ; or
- (c) to require a payment under section 2(6) above ; or
- (d) to vary or revoke a licence,

it shall be the authority's duty, when notifying the applicant for or holder of the licence of the proposal, also to notify him—

- (i) of the reason for it ; and
- (ii) of his right under this section to make written representations relating to it.

(2) A notification of a proposal to vary or revoke a licence shall also include a notice that any written representations must be received by the licensing authority within 28 days of the receipt of the notification.

(3) A person who receives a notification of a proposal such as is mentioned in subsection (1) above may make written representations about it to the licensing authority.

(4) If a licensing authority receives such representations, and in the case of a proposal to vary or revoke a licence receives

Right to make
representa-
tions.

them within 28 days of the receipt of the notification of the proposal, the authority shall constitute a committee to consider the representations and shall appoint one of the members of the committee to be its chairman.

(5) Each licensing authority shall draw up and from time to time revise a panel of persons who are specially qualified in the authority's opinion to be members of such committees, and any such committee constituted by a licensing authority shall be drawn from members of the authority's panel.

(6) It shall be the duty of the chairman of a committee—

(a) to serve upon the person who made the representations under subsection (3) above a notice in writing requiring him to state within 14 days of the receipt of the notice whether he wishes to make oral representations to the committee ; and

(b) to give him, not earlier than the date of the notice under paragraph (a) above, notice in writing of the place, date and time of the meeting of the committee.

(7) A notice under subsection (6)(b) above shall not specify a date for the meeting of the committee earlier than 21 days from the date of the notice, unless the person who made the representations has agreed to an earlier meeting.

(8) If the person who made the representations expresses a wish to make oral representations to the committee, they shall afford him an opportunity of so doing, either in person or by any person authorised by him in that behalf.

(9) The committee shall consider any representations made under subsection (3) or (8) above and shall make a report to the licensing authority after the close of their consideration, giving their findings of fact and their recommendations.

(10) Where representations relating to a proposal have been made under this section, the licensing authority may make a final decision relating to the proposal only after receiving and considering the committee's report on it.

(11) The licensing authority shall notify the person who made the representations of the authority's decision and the reasons for it and shall send him a copy of the committee's report.

(12) Subject to subsection (13) below, a licensing authority may pay to a person who makes representations under this section such sum as the authority considers appropriate in respect of costs or expenses incurred by him in connection with the making of the representations and their consideration under this section.

(13) No payment shall be made under subsection (12) above where the final decision confirms the authority's original proposal without modifications.

(14) Each licensing authority, with the consent of the Minister for the Civil Service as to numbers, may appoint such staff for committees under this section as the authority thinks fit, and may make arrangements for securing that such of the authority's officers as the authority considers are required are available to assist any such committee.

4.—(1) A licensing authority shall compile and keep available ^{Publicity.} for public inspection free of charge at reasonable hours the notifiable particulars of any dumping licensed by them under this Act, and shall furnish a copy of any such notifiable particulars to any person on payment of such reasonable sum as the authority may with the consent of the Treasury determine.

(2) In subsection (1) above "notifiable particulars" means particulars which Her Majesty's Government in the United Kingdom are required to notify to the international organisations.

5.—(1) Each licensing authority, with the consent of the Minister for the Civil Service as to numbers, may appoint ^{Enforcement of Act.} enforcement officers for the purposes of this Act.

(2) An enforcement officer appointed under subsection (1) above is referred to in this Act as a "British enforcement officer".

(3) A British enforcement officer may be either an inspector appointed for the purposes of this Act or an officer of the licensing authority appointed to exercise and perform the powers and duties of such an inspector subject to such limitations as may be specified in the instrument appointing him; and the following provisions of this Act shall be construed, in reference to such an officer, as subject to any such limitations.

(4) A British enforcement officer may, for the purpose of enforcing this Act, exercise, in relation to places and things liable to inspection under this Act, the powers conferred by subsections (7) to (10) below.

(5) Subject to subsection (6) below, the places and things liable to inspection under this Act are—

- (a) land (including land submerged at mean high water springs and buildings on land), vehicles, aircraft and hovercraft in the United Kingdom;
- (b) ships in ports in the United Kingdom; and
- (c) British ships, aircraft, hovercraft and marine structures, wherever they may be,

in which a British enforcement officer has reasonable cause to believe that any substances or articles intended to be dumped in the sea are or have been present.

(6) The places liable to inspection under this Act do not include any private dwelling not used by or by permission of the occupier for the purpose of a trade or business.

(7) A British enforcement officer may at any reasonable time enter any place liable to inspection under this Act, and board any vehicle, ship, aircraft, hovercraft or marine structure which is so liable, with or without persons and equipment to assist him in his duties.

(8) A British enforcement officer—

- (a) may open any container and examine and take samples of any substances or articles ;
- (b) may examine equipment and require any person in charge of it to do anything which appears to the officer to be necessary for facilitating examination ;
- (c) may require any person to produce any licences, records or other documents which relate to the dumping of substances or articles in the sea and which are in his custody or possession ;
- (d) may require any person on board a ship, aircraft, hovercraft or marine structure to produce any records or other documents which relate to it and which are in his custody or possession ; and
- (e) may take copies of any document produced under paragraph (c) or (d) above.

(9) For the purpose of boarding a vehicle, ship, aircraft, hovercraft or marine structure, a British enforcement officer may require the person in charge to do anything which will facilitate boarding, and the power conferred by this subsection includes power, in the case of a vehicle, ship or hovercraft, to require the person in charge to stop it.

(10) A British enforcement officer may require the attendance of the master of a ship, the commander of an aircraft, the captain of a hovercraft or the person in charge of a marine structure on board that ship, aircraft, hovercraft or structure, and may make any examination and inquiry which appears to him to be necessary.

(11) A British enforcement officer shall be furnished with a certificate of his appointment and on entering or boarding for the purposes of this Act any place or thing liable to inspection under this Act shall, if so requested, produce the said certificate.

Enforcement
of
Conventions.

6.—(1) The Minister and the Secretary of State may jointly by order declare—

- (a) that any procedure which has been developed for the effective application of the London Convention, the Oslo Convention or any designated Convention and is specified in the order is an accepted procedure as

between Her Majesty's Government in the United Kingdom and the Government of any Convention State so specified; and

- (b) that the powers conferred by subsections (7) to (10) of section 5 above may be exercised, for the purpose of the enforcement of that procedure outside United Kingdom waters—

(i) in relation to a British ship or hovercraft, by a person of any specified class appointed to enforce it by the Government of that State, and

(ii) in relation to a ship or hovercraft of that State, by a British enforcement officer.

(2) A person belonging to a class specified in an order under this section is referred to in this Act as a "foreign enforcement officer", but any reference to a foreign enforcement officer in the following provisions of this Act shall be construed, in relation to any person of a class so specified, as applying to him only for the purposes of the procedure specified in the order as the procedure for whose enforcement his Government appointed him.

7.—(1) A British or foreign enforcement officer shall not be liable in any civil or criminal proceedings for anything done in purported exercise of the powers conferred on him by this Act if the court is satisfied that the act was done in good faith and that there were reasonable grounds for doing it.

Miscellaneous provisions as to enforcement officers.

(2) Any person who—

- (a) without reasonable excuse fails to comply with any requirement imposed, or to answer any question asked, by a British or foreign enforcement officer under this Act;
- (b) without reasonable excuse prevents, or attempts to prevent, any other person from complying with any such requirement or answering any such question; or
- (c) assaults any such officer while exercising any of the powers conferred on him by or by virtue of this Act or obstructs any such officer in the exercise of any of those powers,

shall be guilty of an offence.

(3) A person guilty of an offence under this section shall be liable on summary conviction in the case of a first offence thereunder to a fine not exceeding £200 and in the case of a second or subsequent offence thereunder to a fine not exceeding £400.

Evidence.

8.—(1) In any civil or criminal proceedings a written statement purporting to be a report made by a British or foreign enforcement officer on matters ascertained in the course of exercising his powers under this Act shall be admissible as evidence to the like extent as oral evidence to the like effect by that officer.

(2) Subsection (1) above shall be taken to be in addition to and not to derogate from the provisions of any other enactment relating to the reception or admissibility of documentary evidence.

**Offences—
general
provisions.**

9.—(1) Where an offence under this Act which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, a director, manager, secretary or other similar officer of the body corporate, or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

(2) Where the affairs of a body corporate are managed by its members, subsection (1) above shall apply in relation to the acts and defaults of a member in connection with his functions of management as if he were a director of the body corporate.

(3) Proceedings for any offence under this Act may be taken, and the offence may for all incidental purposes be treated as having been committed, in any place in the United Kingdom.

Crown land.

10.—(1) The powers conferred by subsections (7) to (10) of section 5 above shall be exercisable, with the consent of the appropriate authority, in relation to land in which there is a Crown interest or a Duchy interest but in which there is also an interest held otherwise than by or on behalf of the Crown.

(2) In subsection (1) above “Crown interest” means any interest belonging to Her Majesty in right of the Crown, or belonging to a government department, or held in trust for Her Majesty for the purposes of a government department; “Duchy interest” means an interest belonging to Her Majesty in right of the Duchy of Lancaster, or belonging to the Duchy of Cornwall; and for the purposes of that subsection “the appropriate authority”, in relation to any land—

(a) in the case of land belonging to Her Majesty in right of the Crown and forming part of the Crown Estate, means the Crown Estate Commissioners, and, in relation to any other land belonging to Her Majesty in right of the Crown, means the government department having the management of that land;

(b) in relation to land belonging to Her Majesty in right of the Duchy of Lancaster, means the Chancellor of the Duchy ;

(c) in relation to land belonging to the Duchy of Cornwall, means such person as the Duke of Cornwall, or the possessor for the time being of the Duchy of Cornwall, appoints ;

(d) in the case of land belonging to a government department or held in trust for Her Majesty for the purposes of a government department, means that department ;

and, if any question arises as to what authority is the appropriate authority in relation to any land, that question shall be referred to the Treasury, whose decision shall be final.

11.—(1) There shall be paid out of money provided by Financial Parliament all sums required for the purpose of making pay-provisions. ments on behalf of Her Majesty's Government in the United Kingdom to the international organisations.

(2) There shall also be paid out of money provided by Parliament—

(a) such fees and allowances for members of committees under section 3 above ;

(b) such salaries and allowances for the staff of such committees ;

(c) such other expenses of such committees ; and

(d) such salaries or other remuneration for British enforcement officers,

as the licensing authority constituting any such committee or appointing such staff or officers may, with the consent of the Minister for the Civil Service, determine.

(3) There shall also be paid out of money provided by Parliament any expenses incurred under this Act by a licensing authority and not mentioned in subsection (1) or (2) above.

(4) Any receipts of a licensing authority under this Act shall be paid into the Consolidated Fund.

12.—(1) In this Act, unless the context otherwise requires— Interpretation.

“ British aircraft ” means an aircraft registered in the United Kingdom ;

“ British enforcement officer ” has the meaning assigned to it by section 5(2) above ;

“ British hovercraft ” means a hovercraft registered in the United Kingdom ;

“ British marine structure ” means a marine structure owned by or leased to an individual resident in or a

body corporate incorporated under the law of any part of the United Kingdom ;

1894 c. 60.

“ British ship ” means a vessel registered in the United Kingdom, or a vessel exempted from such registration under the Merchant Shipping Act 1894 ;

“ captain ”, in relation to a hovercraft, means the person who is designated by the operator to be in charge of it during any journey, or, failing such designation, the person who is for the time being lawfully in charge of it ;

“ commander ”, in relation to an aircraft, means the member of the flight crew designated as commander of that aircraft by the operator thereof, or, failing such a person, the person who is for the time being the pilot in command of the aircraft ;

“ Convention ” includes an agreement or other arrangement ;

“ Convention State ”, in relation to the London Convention, the Oslo Convention or a designated Convention, means a State declared to be a party to that Convention by an order for the time being in force under subsection (3) below ;

“ designated Convention ” means a Convention declared to be a designated Convention by an order for the time being in force under that subsection ;

“ dumping ” has the meaning assigned to it by section 1 above ;

“ foreign enforcement officer ” has the meaning assigned to it by section 6(2) above ;

“ government department ” includes a department of the Government of Northern Ireland ;

1964 c. 40.

1970 c. 1 (N.I.).

“ harbour authority ” has the meaning assigned to it by section 57 of the Harbours Act 1964 or in Northern Ireland, section 38 of the Harbours Act (Northern Ireland) 1970 ;

1968 c. 59.

“ hovercraft ” means a hovercraft within the meaning of the Hovercraft Act 1968 ;

“ international organisations ” means any organisation established in pursuance of Article XIV of the London Convention or Article 16 of the Oslo Convention and any similar organisation established in pursuance of a designated Convention ;

“ licensing authority ” means—

(a) in relation to substances or articles which have been or are to be loaded in England or Wales, or in United Kingdom waters adjacent to England or Wales, the Minister ;

(b) in relation to substances or articles which have been or are to be loaded in Scotland, or in United Kingdom waters adjacent to Scotland, the Secretary of State ;

(c) in relation to substances or articles which have been or are to be loaded in Northern Ireland, or in United Kingdom waters adjacent to Northern Ireland, the Department of the Environment for Northern Ireland ; and

(d) in relation to substances or articles which have been or are to be loaded outside the United Kingdom and outside United Kingdom waters, the Minister ;

“ lighthouse authority ” means a local lighthouse authority or a general lighthouse authority within the meaning of section 634 of the Merchant Shipping Act 1894 ; 1894 c. 60.

“ load ” means load for dumping ;

“ the London Convention ” means the Convention on the Prevention of Marine Pollution by Dumping of Wastes and Other Matter concluded at London in December 1972 ;

“ marine structure ” means a platform or other man-made structure at sea ;

“ master ”, in relation to any ship, includes the person for the time being in charge of the ship ;

“ the Minister ” means the Minister of Agriculture, Fisheries and Food ;

“ the Oslo Convention ” means the Convention for the Prevention of Marine Pollution by Dumping from Ships and Aircraft concluded at Oslo in February 1972 ;

“ sea ” includes any area submerged at mean high water springs, and also includes, so far as the tide flows at mean high water springs, an estuary or an arm of the sea and the waters of any channel, creek, bay or river ; and

“ United Kingdom waters ” means any part of the sea within the seaward limits of United Kingdom territorial waters.

(2) Any reference in this Act to any other enactment is a reference thereto as amended, and includes a reference thereto as extended or applied by or under any other enactment, including this Act.

(3) The Minister and the Secretary of State may jointly by order declare—

- (a) that any Convention relating to dumping in the sea to which Her Majesty's Government in the United Kingdom is a party is a designated Convention for the purposes of this Act ; and
- (b) that any State specified in the order is a party to the London Convention, the Oslo Convention or a designated Convention.

Savings.

13.—(1) The restrictions imposed by this Act are in addition to any restriction imposed by or under any other enactment, whether public, local or private, and neither affect nor are affected by any such restriction.

1889 c. 63.

(2) Subject to the provisions of section 33 of the Interpretation Act 1889 (which relates to offences under two or more laws), nothing in this Act—

- (a) confers a right of action in any civil proceedings (other than proceedings for the recovery of a fine) in respect of any contravention of this Act ; or
- (b) derogates from any right of action or other remedy (whether civil or criminal) in proceedings instituted otherwise than under this Act.

Orders.

14.—(1) Any power to make an order under this Act shall be exercisable by statutory instrument.

(2) A statutory instrument containing such an order shall be laid before Parliament.

(3) Any power conferred by this Act to make an order includes power to vary or revoke the order by a subsequent order.

Short title
and extent.

15.—(1) This Act may be cited as the Dumping at Sea Act 1974.

(2) It is hereby declared that this Act extends to Northern Ireland.

(3) Her Majesty may by Order in Council make provision for extending this Act, with such exceptions, adaptations or modifications as may be specified in the Order, to any of the Channel Islands, the Isle of Man or any colony.

(4) An Order in Council under this section may be varied or revoked by a subsequent Order in Council.